ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	103rd Commission Meeting
DATE:	10 November 2022
TIME:	09:30 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Apprise on revised theme for the IACD and integration of integrity education in scouting – ED** *As directed during the 102nd Commission meeting, the Division reworked on the theme for the International Anti-Corruption Day (IACD) by seeking suggestions from all ACC staff. Accordingly, the Division proposed three themes:* *1. Believe-ing with integrity;* *2. In Bhutan, We Believe; With Integrity, We Achieve; and* *3. Achieving Believe Bhutan with Integrity.* *In addition, in their effort to integrate integrity education in scouting, the Division has designed a logo for integrity proficiency badge which was presented to the Commission for endorsement. (The proposed logo along with its description is attached as Annex 1)*	**To this, the Commission directed to choose option 3, 'Achieving Believe Bhutan with Integrity'.** **With regard to the logo for integrity proficiency badge, the Commission directed the following:** ● **Include the value *'DAMTSI'* in the logo. Given that this very value is pertinent to the ACC and has been used in other initiatives of the Commission, it was directed to be used consistently in other similar initiatives as well;** ● **In the description about the logo elucidate the significance of** encircling **aura as a symbol of spreading the values such as integrity, honesty, accountability, fairness and responsibilities beyond the confines of self, geography and time;** ● **Inscribe Anti-Corruption Commission along with the Bhutan Scouts Association in the logo; and** ● **Explore the possibilities of designing a logo for the IACD every year.**

Deki

2.	**Apprise on action on non-declarant – ADMD** *The ADMD presented justifications received from the non-declarants along with the Division's recommendations. (Presentation slides attached as Annex II)*	**The Commission decided to either waive off or impose penalty based on the plausibility of justifications provided by the non-declarants. (The decisions against each non-declarant can be found in Annex II)** **Besides, the Commission directed to henceforth deposit the penalty imposed to the late-declarants and non-declarants into the Government Account (ACC Escrow Account) and accordingly effect changes in the Asset Declaration Rules 2017 during the amendment.**
3.	**Regular update on HR – HRS** *The Royal Institute of Management has invited eligible P2 civil servants in the Professional and Management Category to register for the Leadership Development Programme (LDP) which is being conducted in collaboration with the Royal Civil Service Commission.* *To this, it was learnt that the Regional Director, Trashigang has already registered and has been selected for the programme. In addition, the Regional Director, Bumthang and Head of the Phuentsholing Field Office have indicated their intent to register for the programme. Thus, HRO sought the Commission's direction on relieving them for the programme.* *The HRO also apprised the Commission on the deliberation in the HRC pertaining to the obligation for those on lateral transfer, the HRC decided not to take it up in view of the legal issues.* *In addition, the Commission was also apprised on the progress of the recruitment process for the vacancies announced.*	**While the Commission encourages to attend such programmes, it is to be noted that anything that demands long term engagement of the staff must be duly put up to the Human Resource Committee for deliberation. Since LDP consists of various modules staggered at different time intervals, applicants are advised to plan their travel accordingly to ensure their works in the Regional Offices are not compromised.** **The Commission noted the decision. However, it must be noted that whatever individuals commit during the selection interview will be treated as an official reference in such cases.** **While the Commission noted the recruitment progress, the HRO was directed to secure the budget from the RCSC for the mandatory training which is tentatively scheduled in early January, 2023. In addition, the date of appointment for the new recruits was directed to be changed to 1 January 2023 as against the plan to be effective from 15 December 2022.**

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		<u>Commission's Appreciation</u> **The team who was in Phuentsholing for major case investigation is currently in the Head Office, Thimphu. While the team has some desk work to be completed, in the backdrop, the team was called back in view of the constraint in travel budget. Since the investigation is progressing well, prolonged hiatus will be detrimental to the progress and impede momentum for which the team is offering to continue the investigation even without the DSA if the situation is domineering.** **While the Commission is of the faith that such won't be the case, such gesture of resolve, commitment, professionalism and bravery from the team is a manifestation of true institutional character and reverberates 'why we do what we do'. To this, the Commission extends its deepest and wholesome appreciation.** **In addition, it was learnt that the new recruits who are part of the team are catching-up and more importantly observed to be very forthcoming. Such noteworthy development is very reassuring in times when the Commission is witnessing unprecedented turnover of experienced professionals.**
4.	**Discuss on presentation to the Chief of Police – Major Gyaltshen & SS** *The Security Officer presented the presentation prepared for the Hon'ble Chief of Police for Commission's comments. (Presentation slides attached as Annex III)*	**To this, the Commission directed to:** ● **Prioritize the security assistance needs based on the urgency wherein the security for the Phuentsholing Field Office must be accorded the topmost priority followed by Head Office, Bumthang Regional Office and Trashigang Regional Office;** ● **Segregate the security assistance needs specific to different Regional Offices and Head Office; and** ● **Mention regarding the shifting of Bumthang and Trashigang Regional Offices to the new Royal Audit Authority's Office in Bumthang and Trashigang District Court respectively.** **Besides, the Commission directed HRS to explore the possibilities of integrating self-defense training as part of the Mandatory training.**

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5.	**Present draft Guideline on Suspension of Business License – LD** *Section 24(1) (g) of the Anti-Corruption Act of Bhutan 2011 (ACAB) empowers the Commission to suspend a license or prohibit an individual or entity from participating in contractual relation with public agencies upon finding a prima facie case of corruption. Towards ensuring clarity in its interpretation for consistent and objective application, the Legal Division has drafted Guideline on Suspension of Business License. The same was presented for Commission's review and comments. (Draft guideline attached as Annex IV)*	**The Commission directed to:** ● **Do away with the exception b and c;** ● **Include 'To set out distinction between Suspension and Prohibition' as one of the objectives of the Guideline;** ● **Refer the Licensing Rules of relevant agencies.; and** ● **Refer *Lamtoen Kaja* on Gyelpoizhing land case to draw necessary insights.**
6.	**Present way forward for the roll out of Model Public Service Code of Conduct – LD** *The LD presented the tentative plan for the roll out of Model Public Service Code of Conduct for Commission's endorsement. (The plan is attached as Annex V)*	**In principle, the Commission endorsed the tentative plan. However, the proposed date to issue an Executive Order on 14 November 2022 was directed to be kept tentative. Further, the Executive Order along with the Model Public Service Code of Conduct was directed to be shared through email to all RGoB users.**
7.	**Present implementation status of last Commission meeting (102nd Commission Meeting) – PPD**	**Deferred**
8.	Others: **i) Nomination of Gyalsung Focal Officer** *The RCSC has requested to nominate a Focal Officer to consult on any matter related to the Gyalsuung programme and share the details of Focal Officer latest by 10 November 2022.*	**To this, given the relevance, the Commission decided to nominate Tenzin Phuntsho, Offtg. Director of Department of Prevention and Education as the Gyalsung Focal Officer from the ACC.**

Commissioner **Commissioner** **Chairperson**

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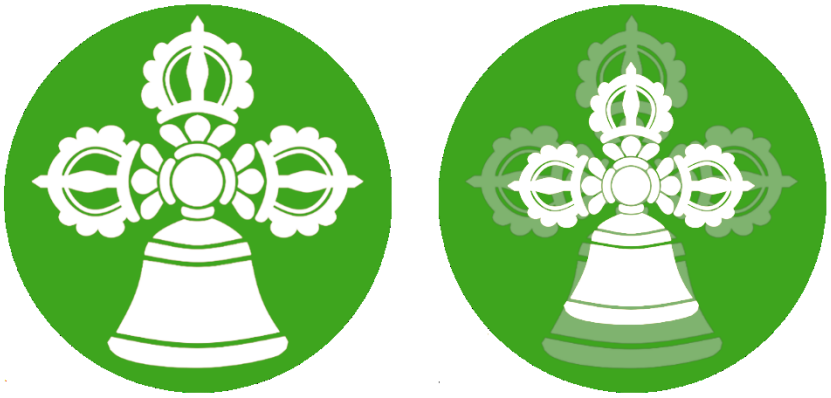
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Annexure I

Integrity Badge



Drilbu (Bell) – Represents *Wisdom*

Wisdom: Knowing and identifying the values such as integrity, honesty, accountability, fairness, responsibilities, etc., their importance and how this will have a positive impact on individuals, society, and the nation.

Sound of bell: Creating positive effects on others by being an integrity champion/ exemplary role model.

Shadow: Spreading those values and inspiring others to uphold those values

Dorji (Vajra)- Represents *Method*

Method: Upholding, practicing and spreading those values. Exhibiting and standing up to these values as an Integrity Champion.

The Dorji is a symbol of stability, indestructibility, incorruptibility, and purity of actions that have no external force and influence the integrity of the individual.

Requirements

- Know about the fundamentals of Scouts and moral values such as integrity, fairness, due diligence, transparency, accountability, trustworthiness, law-abiding, etc.
- Uphold individual roles and responsibilities
- Demonstrate positive conduct and behavior at all times
- Follow the school's rules and regulations
- Identify right from wrong and resolve ethical issues
- Take care of class and school properties
- Keeping one's promises and commitments
- Returning of lost-and-found items
- Share a story on integrity/values in Messenger of Peace

Annexure II

Action on Non-Declarants: Income Year 2021

Third Presentation to the Commission

9 November, 2022
ADMD

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Outline

- Appeal by non-declarant
- Action on non-declarants

Overall AD Compliance Statistics

Declarant Category	Total Covered Persons	Total Filed on Time	Total Late Declarant	Total Non Declarant	On Time Compliance rate
Schedule I	700	661	37	2	94.43%
Schedule II	24,591	24,110	347	138	98.04%
Overall	**25,291**	**24,771**	**384**	**140**	**97.94%**

Reason for Non-Declaration (Justifications Received)

SN	Non-Declaration Reason	Count
1	Appeal	4
2	Not a Covered Person/Resigned/Expired	18
3	Leave without pay	3
4	Late	1
5	Others	3
Total Non Declarants		**29**

1. Appeal

Name	CID	Working Agency	Designation	Justification	Commission Decision
Garjaman Subba	11801000721	**DHI**	Analyst	He is a new declarant, didn't get any information of having to file AD. he joined DHI in dec 1 2021 and was placed in remote village. ADA added in him in the covered list only on 28 July 2022	Drop, bc of ADA. write letter ADA calling for his justification
Mohan Lal Sanyasi	11808001822	**DHI**			
Kinley Wangdi	10811002485	**FCB**	Manager	He tried to file but couldn't log in to the system. he even informed ADA, after that He was on leave for two months (August-September) in Gasa where there was no internet access. He informed ADA to rectify system issues but ADA did not solve his issues. His appeal is for him to be imposed late declarant penalty. His penalty was 5775 initially when he submitted his declaration.	Impose
Tashi Penjor	11704002125	**Sarpang**	VP	He was not aware that VPS have to declare asset. appeal: family problems, appeal to waive off the penalty	Impose

2. Not a covered Person

- 15 Non-Declarants reflected in the System were:
  - Not a covered person
  - Resigned
  - Deceased

3. Leave without Pay

Name	CID	Working Agency	Justification	Recommendation of ADMD
Tashi Samdrup	20130302218	Ministry of Home and Cultural Office	on study leave without pay from August 2021-31 July 2024	Drop
Ngedrup Jamtsho	11104004155		on study leave without pay from 26 September 2021-30 June 2024	
Nidup Jamtsho	10706000006		EOL since 5 July 2022- 04 July 2024	Impose

4. Late Declarant

Name	CID	Working Agency	Justification	Recommendation of ADMD
Dorji Khandu	11912000774	Wangdue	late declarant submission date: 5/8/2022	Write a letter to individual on withdrawal of penalty for non-declarant

9. Others

Name	CID	Working Agency	Justification	Recommendation of ADMD
Dechen Wangmo	11111001611	BDBL	she tried to file in may. After that she was on leave from 21 May 2022- 23 July 2022. After that she took leave after the demise of her father (19 July). after that she went on maternity leave	Cross check her documents, and then decide whether to drop/impose
Sonam Zangmo	12003001915	BDBL	tried filing but due to system error, could not. Also, due to health issues, was on frequent leave from office	Impose
Younten Tharchen	10906000434	BDBL	When he checked his AD account, he saw that 2021 declaration was completed until ADA inform him of being a non-declarant	Impose,

Thank you

Annexure III

Presentation on Secuirty



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ACC

ANTI-CORRUPTION COMMISSION

Scope

- Background
- Secuirty threats
- Current Security Scenario
- Long-term security unit preparation
- Immediate requirements
- Challenges
- Discussion

Background

- Following the meeting with the Honorable Chief of Police on October 2022
- This presentation portrays the exixting security system of the commission, threats to the personnel, properties, datas and official records and information.
- Secuirty enhancement works that are in progres
- Establishment of security unit
- Current challenges

Securtiy Threats

- Lives of ACC employees (Physical, verbal and mental)
- The ACC Facilities and equipment(vandalism, arson, sabotage)
- Official records(tamper, theft, misuse)
- Information (Cyber attack)

Current Security Scenario

- Only CCTV Cameras in Phuntsholing
- CCTV and three private guards at Thimphu
- No security measures in Bumthang and Tashlgang
- Both facilities have perimeter fencing
- CCTV control room with no operator
- All arrests, search seizure and escorts carried out without security protocols
- No security unit and no security personnel
- Biometric and digital access control system
- Private security personnel do not have legal binding

Long-term Security Unit Set up

- Need to set up a security unit at the commission
- One Chief Security Officer(Deputation) and four reginal security officers
- Security personnel of a section strength in each region(40)
- Training of ACC officers with the Officer trainees of the RBP
- Training of the security personnel with the recruits of RBP
- Perimeter fencing to be reinforced with tall concrete walls
- All arrest, search, seizure, escort and detention to be executed by the security unit
- Housing colony for the employees
- Self defense training for the existing employees with regular refresher courses.

Immediate Assistance Required From RBP

- Security at Bumthang, Tashigang, Phuntsholing and Thimphu till the commission has established a security unit
- Security during search, seizure, escort and interrogation- Currently escort services are being provided by the local police stations on request but majority of search, seizure and arrests are being made by investigators without security personnel
- Detention services in all the four regions as and when required- no issues with planned escorts and detention. Require for unplanned, ad-hoc and odd hours.
- Facilitate training for the security guards ad officers with RBP officers and recruits to prepare our professionals with investigation and security tools
- Facilitate short term self defense training/refresher courses to all the employees on regular basis



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Thank you

Annexure IV

GUIDELINE ON SUSPENSION OF BUSINESS LICENSE

Introduction

Section 24(1) (g) of the Anti-Corruption Act of Bhutan 2011 (ACAB) empowers the Anti-Corruption Commission (ACC) to suspend a license or prohibit an individual or entity from participating in contractual relation with public agencies upon finding a prima facie case of corruption. Section 24(1)(g) of the ACAB provides broad mandates the ACC to either (i) suspend a license or (ii) prohibit an individual or entity to enter into contractual relationship with public agencies. It states as follow:

"(g) Upon finding of a prima facie case of corruption, suspend a license, or prohibit an individual or entity whether national or foreign from participating in contractual relations with public agencies till pending the outcome of the case;"

The said section accord discretion on the ACC to either consider suspending the license thereby prohibiting the licensee from carrying out any future business by an individual or entirety using the impugned license, or prohibit the licensee from entering into contractual relationship only with public agencies and allowing the use of impugned license for other private business. However, it does not specify the manner for this section to be invoked and enforced. Therefore, it is imperative to have detail guideline to ensure consistent application and enforcement of the said section; and to bring clarity in the suspension of business license.

Objectives

(1) The objectives of this Guideline are to set forth the conditions and manner to suspend a license or prohibit an individual or entity, whether national or foreign, from participating in a contractual relationship with public agencies.

Application

(2) This guideline shall apply for:

(a) Suspension of business license; and

(b) Prohibition of individual or entity, whether national or foreign, from entering into contractual relationship with public agencies.

Suspension of business license

(3) Business license shall be suspended only if there is prima facie case of corruption in obtaining a business license.

Prohibition from entering into contractual relationship with public agency

(4) An individual or entity found to have engaged in commission of corruption offense by using a lawfully obtained license shall be prohibited from entering into contractual relationship with public agencies till the pending of case.

Exception

(5) A business license may not be suspended or an individual or entity may not be prohibited from entering into contractual relationship with public agencies if the prohibition would have adverse impact on:

(a) National security and sovereignty;

(b) Friendly relation with foreign State or international or regional offices;

(c) Economic interest of the State or public agency; or

(d) Public health interest;

Suspension and Prohibition Order

(6) Suspension of business license or prohibition from entering into contractual relationship with public agencies shall be effected by:

(a) Issuance of a Suspension Order or Prohibition Order;
(b) Published in two mainstream newspapers circulating in Bhutan; and
(c) Broadcast in the television.

(7) A copy of such order shall be served to the relevant person and public agencies for compliance and necessary actions.

(8) The suspension of business license shall be effected by issuance of Suspension Order provided under annexure I.

(9) Prohibition from entering into contractual relationship with public agency shall be effected by issuance of Prohibition Order provided under annexure II.

Effect on on-going work

(10) The suspension or prohibition order shall not affect any on-going contractual obligations established prior to the suspension or prohibition.

(11) The Commission may allow the licensee to clear their stocks within a month or within such time the Commission deem fit.

Revocation of Suspension and Prohibition Order

(12) The Commission may revoke or rescind the Suspension Order or Prohibition Order if it deem continuation of suspension or prohibition is unnecessary or to serve the national or public interest.

Amendment and variation

(13) This Guideline is intended to be working document and may be amended or varied by the Commission from time to time to fulfill the general objective of this Guideline.

Annexure V

Action plan for implementation of Model Public Service Code of Conduct

Sl. No	Activities	Tentative Date	Responsibility
1	Adopt the Model Code by the Commission	10/11/2022	LD, PPD, COM
2	Issue Executive Order	14/11/2022 – Auspicious day	LD and COM
3	Layout and format the Model Code into standard format	14/11/2022	LD and PPD
4	Direct the Agencies to Implement the Model Code as a part of OIP implementation	15/11/2022	PD, DoPE
5	Public education on Model Code (incorporate in the public education materials and sensitize the public servant and public in general)		ED, DoPE
6	Develop Information, Education and Communication materials		ED,